

HOUSE No. 1406

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve continuity of care for MassHealth members with chronic conditions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>

HOUSE No. 1406

By Representative Sabadosa of Northampton, a petition (accompanied by bill, House, No. 1406) of Lindsay N. Sabadosa relative to continuity of care for MassHealth members with chronic conditions. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve continuity of care for MassHealth members with chronic conditions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Chapter 118E of the General Laws is hereby amended by adding, before
2 Chapter D, the following new section:

3 Section 9C1/2. Prior Authorization Requirements Related to Community-based Long-
4 term Care for MassHealth Members with Chronic Conditions.

5 (1) For purposes of this section, the following terms shall have the following definitions:

6 “Community long-term care services” shall include, but is not limited to: Adult Day
7 Health, Adult Foster Care, Group Adult Foster Care, Day Habilitation, Home Health Aide,
8 Personal Care Attendant Services, and all services described in the Frail Elder Waiver that was in
9 effect as of April 1, 2024, provided that these long-term care services include services itemized
10 in the Frail Elder Waiver as well as said services included in any other 1915(c) waiver in effect
11 as of April 1, 2024;

“Chronic condition” is a health condition or disease that is persistent or otherwise expected to last longer than one year; include intellectual or developmental disabilities.

(2) Where the agency requires prior authorization for long-term services and supports, prior authorization for long-term services and supports that address a chronic condition shall issue for the duration of the prescribed or ordered service for a prior authorization period of up to five (5) years.

Nothing in this section shall preclude MassHealth or its authorized agent from modifying a service plan at the request of the member or a primary care provider in response to a change in a member’s condition and their corresponding service need.

Section 2. Section 4B of Chapter 19A of the General Laws is hereby amended by adding, after the fourth paragraph, the following paragraph:

Regarding the service authorization duties enabled by paragraph one in this section, where a skilled medical provider employed by an ASAP conducts screening activities and service authorizations for community long-term care services for which the ASAP will not be the direct service provider, the service authorization shall constitute a prior authorization for community long-term care services. ASAPs shall work to promote the prompt delivery of services pursuant to a service plan. The provisions of this paragraph shall apply to the senior care options initiative established by section 9D of Chapter 118E. Nothing in this section shall preclude MassHealth or its authorized agent from modifying a service plan at the direction of the member or a primary care provider in response to a change in a member’s condition and their corresponding service need.